

1.

CASE #	CASE NAME	HEARING NAME
CVME2505435	LICEA VS GENERAL MOTORS LLC	MOTION FOR ATTORNEY'S FEES

Tentative Ruling: Motion for Attorney's is granted in the reasonable amount of \$ 12,952.50. Costs awarded in the amount of \$969.10. Request for a multiplier is denied based upon complexity of case and amount of litigation involved. The amount was reduced based upon reasonable billing hours and some duplicative work.

2.

CASE #	CASE NAME	HEARING NAME
CVME2506577	QIN VS KOLL	MOTION TO DISMISS

Tentative Ruling: Unopposed motion to dismiss is granted.

3.

CASE #	CASE NAME	HEARING NAME
CVME2513234	HARRIS VS GROUP V SAN BERNARDINO LP	MOTION TO STRIKE COMPLAINT

Tentative Ruling: Motion to Strike is denied. Defendants to answer within 10 days. Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike [a pleading] or any part thereof[.]” (C.C.P. § 435(b)(1).) The Court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, “[s]trike out any irrelevant, false, or improper matter inserted in any pleading.” (C.C.P. § 436(a).) An immaterial or irrelevant allegation is one that “is not essential to the statement of a claim or defense”; “is neither pertinent to nor supported by an otherwise sufficient claim or defense”; or “[a] demand for judgment requesting relief not supported by the allegations of the complaint[.]” (C.C.P. § 431.10(b).) “The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice.” (C.C.P. § 437(a).)

A motion to strike is the proper vehicle to attack a claim for punitive damages where facts alleged do not rise to the level of fraud, malice or oppression. (*Truman v. Turning Point of Central Calif., Inc.* (2010) 191 Cal.App.4th 53, 63.) Plaintiffs may recover exemplary or punitive damages where it is proven that “the defendant has been guilty of oppression, fraud or malice.” (Civ. Code § 3294(a).)

As defined in the statute, “malice” is “conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others,” while “oppression” is defined as “despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” (Civ. Code § 3294(c)(1) and (2).) As used in the statute, “despicable conduct” is conduct that is “so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people.” (*American Airlines, Inc. v. Sheppard Mullin Richter & Hampton* (2002) 96 Cal.App.4th 1017, 1050.)

To support an award of punitive damages on the basis of conscious disregard of the safety of others, a plaintiff “must establish that the defendant was aware of the probable dangerous consequences of his conduct, and that he willfully and deliberately failed to avoid those consequences.” (*Penner v. Falk* (1984) 153 Cal.App.3d 858, 867.)

“Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim.” (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166.) “[A] conclusory characterization of defendant’s conduct as intentional, willful and fraudulent is a patently insufficient statement of ‘oppression, fraud, or malice, express or implied,’ within the meaning of section 3294.” (*Brousseau v. Jarrett* (1977) 73 Cal.App.3d 864, 872.) The pleading must contain factual allegations of wrongful motive, intent, or purpose. (*Cyrus v. Haveson* (1976) 65 Cal.App.3d 306, 317.)

Generally, claims for punitive damages must be pleaded with particularity as to the facts constituting the alleged egregious conduct. (*G.D. Searle & Co. v. Superior Court* (1975) 49 Cal.App.3d 22, 29.) However, the court may read the complaint as a whole so that conclusory allegations may be sufficient when read in context with the facts alleged as to the defendant’s wrongful conduct. (*Perkins v. Superior Court* (1981) 117 Cal.App.3d 1, 6-7.)

A tenant’s habitability action against the owners for failure to remedy substandard living conditions may be sufficient to support a claim for punitive damages. (See, e.g., *Soiber v. Honeychuck* (1980) 101 Cal.App.3d 903, 921 [failure to correct defective living conditions sufficient for punitive damages claim]; *Rivers v. Sassoon* (1995) 39 Cal.App.4th 1045, 1046 [affirming general, special, and punitive damages jury award for breach of the warranty of habitability, nuisance and other torts]; and *Spinks v. Equity Residential Briarwood Apartments* (2009) 171 Cal.App.4th 1004, 1055.)

In the Complaint, Plaintiff allege that the Property was dangerous and uninhabitable because it suffered from severe cockroach infestations; inoperable electrical outlets, smoke and carbon monoxide detectors, and stove; multiple plumbing leaks that caused mold and mildew; and sewage smells from the shower. (Complaint, ¶ 20.) Plaintiff contends that Defendants refused to address the cockroach issue, but Defendants failed to send pest control. (Complaint, ¶ 22.) Plaintiff alleges that the leaks were so bad that the Water Department shut off the water in April 2024 until they were repaired. (Complaint, ¶ 21.) Plaintiff alleges that after she contacted City regarding the condition of the Property, City’s Department of Life Safety inspected the Property on August 23, 2025, and “immediately issued a red tag declaring that ‘the Structure is no longer safe to be occupied.’” (Complaint, ¶ 23.) These allegations are sufficient, for pleading purposes, to support a claim for punitive damages against Defendants.

Defendants argue that Plaintiff’s allegations are conclusory and insufficient to support that Defendants acted with malice because they do not establish an intent to cause injury to Plaintiff. However, as noted above, “malice” is statutorily defined as “conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Civ. Code § 3294(c)(1) [emphasis added].) Accordingly, Plaintiff need only allege facts to show that Defendants’ actions constituted despicable conduct in conscious

disregard of the rights or safety of others to establish that Defendants acted with sufficient malice to support a claim for punitive damages.

In *Taylor v. Superior Court* (1979) 24 Cal.3d 890, 895-896, the California Supreme Court ruled that conscious disregard of safety may constitute malice if the plaintiff establishes that “the defendant was aware of the probable dangerous consequences of his conduct, and that he willfully and deliberately failed to avoid those consequences.” In *College Hospital, Inc. v. Superior Court* (1994) 8 Cal.4th 704, 725, the court stated that for malice, there is more than just a requirement of a willful and conscious disregard; there must also be despicable conduct, which is defined as “base, vile, or contemptible.”

Here, Plaintiff alleged sufficient facts to establish that Defendants were aware of the probable dangerous consequences of their conduct, as they alleged that Defendants refused to repair the Property’s uninhabitable conditions despite receiving Plaintiff’s repeated complaints and City’s citations for health and safety violations. (Complaint, ¶¶ 21-23, 29-34.) Plaintiff further alleges that Defendants knew or should have known that their failure to repair the Property would render it untenable, but acted with callous and intentional disregard for Plaintiff’s health, safety, and well-being. (Complaint, ¶¶ 31-32, 37-38.) Accordingly, Plaintiff alleged sufficient facts to establish that Defendants’ deliberate failure to repair the Property’s uninhabitable conditions amounts to despicable conduct.

4.

CASE #	CASE NAME	HEARING NAME
MCC1900422	HAACKE VS SHEA	MOTION FOR ATTORNEY’S FEES

Tentative Ruling: Motion is denied without prejudice.